SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 3182 of 2019 (YEAR: 2020)

CORAM: D.Y. CHANDRACHUD, K.M. JOSEPH

Wg. Cdr. Arifur Rahman Khan
... Appellant(s) / Petitioner(s)
Versus
DLF Southern Homes Pvt. Ltd.
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986
Sections:	Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Awarded compensation to flat buyers for delayed possession even after accepting conveyance deeds, holding that consumer rights survive physical handover.

RATIO DECIDENDI

The Court held that: Awarded compensation to flat buyers for delayed possession even after accepting conveyance deeds, holding that consumer rights survive physical handover. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Wg. Cdr. Arifur Rahman Khan v. DLF Southern Homes Pvt. Ltd. (Civil Appeal No. 3182 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, particularly Section 14 Consumer Protection. Awarded compensation to flat buyers for delayed possession even after accepting conveyance deeds, holding that consumer rights survive physical handover.

OPERATIVE ORDER

ORDER: Decided